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Banner Health Privacy Statement

Last Updated: November 2019

This Privacy Statement describes and applies to the information we collect from you when you use voice, mobile device and desktop Banner Health platforms, tools and applications, BannerHealth.com and other Banner Health websites (collectively the "Services"), how we use that information, and when we disclose it. It will also give you more information about how to manage the personal information that you provide to us through the Services. This statement applies only to information you provide to us online while visiting or using our Services. It does not apply to information we have obtained or may obtain offline through other traditional means.

This Privacy Statement does not apply to any third-party applications that integrate with the Services.

Banner Health also maintains a separate Terms of Use that applies to your use of the Services and a Notice of Privacy Practices, as required by law, that applies to protected health information that it collects from individuals. View our statement in English or Spanish.

1. The information we collect.

When you use our Services, we receive and collect certain information. The information that we receive and collect depends on what you do when you use the Services.

Automatically Collected Information.

Some information is automatically received and sometimes collected from you when you use the Services. This information may include some or all of the following items: the name of the domain and host from which you access the Internet, including the Internet protocol (IP) address of the computer you are using and the IP address of your Internet Service Provider; the type and version of Internet browser software you use and your operating system; the type and version of your media player(s); the date and time you access our Services, the length of your stay and the specific pages, images, video or forms that you access while using the Services; the Internet address of the website from which you linked directly to our Services and, if applicable, the search engine that referred you and any search strings or phrases that you entered into the search engine to find the Services; and demographic information concerning the country of origin of your computer and the language(s) used by it. We use this information to monitor the usage of our Services, assess performance, ensure technological compatibility with your computer, and understand the relative importance of the information provided on our Services. We may also use this data to conduct statistical analyses on visitors' usage patterns and other aggregated data.

Information Collected via Cookies.

"Cookies" are small files or records that we place on your computer's hard drive to distinguish you from other visitors using the Services. The use of cookies is a standard practice among websites to collect or track information about your activities while using the Services. Some websites use persistent cookies, which are placed on your computer and remain there until you delete them. Others use temporary cookies, which expire after some period or become overwritten by other data. Banner Health Services use "session cookies" which disappear from your computer after you have closed your Internet browser.

Most people do not know that cookies are being placed on their computers when they use Banner Health Services or most other websites because browsers are typically set to accept cookies. You can choose to have your browser warn you every time a cookie is being sent to you or you can turn off cookie placements. If you refuse cookies, you can still use Banner Health Services, but your overall experience may be affected and some functionality may be reduced or unavailable.

Information Collected Using Pixel Tags or Clear GIFs.

Pixel Tags or Clear GIFs, also known as Web Beacons or Web Bugs, are transparent graphical images placed on a website. Currently, Banner Health does not use them on its site.

Information You Actively Submit.

For most of the activity using our Services, we neither require nor collect "User Information." User Information is information that could personally identify you, for example, your name, e-mail address, billing address, shipping address(es), phone number, social security number, and credit card information. You can browse Banner Health Services and take as much time as you want to review our services without having to submit such User Information.

User Information is required when you want to (i) submit a job application; (ii) make an online donation; (iii) sign up for a class or event conducted at one of our medical centers; (iv) send an e-mail message to us or otherwise provide online comments, criticisms, suggestions or feedback; (v) participate in a chat session; (vi) purchase merchandise from the Banner Store; (vii) reserve a spot or make an appointment at a Banner Health facility; or (viii) pre-register for a hospital procedure such as surgery.

Banner Health uses a third party to host the Banner Store. If you purchase merchandise from Banner Health, Banner Health will share your User Information, including, your name, address, telephone number, credit card number, and billing and shipping address, with third parties filling your order. Banner Health does not warrant and cannot guarantee the information privacy policies and practices of such third parties.

If you make donations, your information is provided to one or more of the following 501(c)(3) organizations: Banner Health Foundation; Banner Alzheimer's Foundation; Casa Grande Community Hospital Foundation; Banner Lassen Medical Center Foundation; McKee Wellness Foundation; Weld Legacy Foundation; East Morgan County Hospital Foundation; Sterling Regional MedCenter Foundation; Ogallala Community Hospital Foundation; Community Hospital Foundation; Platte County Memorial Hospital Foundation; and/or Washakie Hospital Foundation.

We do not require you to provide any personal medical information about yourself to us through the Services, and we ask that you not share personal medical information through the Services, especially information that you wish to keep confidential. Information you provide through our Services is not protected under confidentiality laws that protect physician-patient communications. Please carefully select what you choose to disclose. In addition, while Banner Health attempts to prevent unauthorized access to our Services, such access may occur. Personal medical information that Banner Health receives in any manner is subject to separate privacy practices. Our statement regarding the treatment of such information can be read in English or Spanish.

Personal Information about Children.

The Banner Health Services are targeted primarily for use by adults. Accordingly, we do not knowingly collect age identifying information, except on job applications and reservation forms, nor do we knowingly collect any personal information from children under the age of 13. However, we advise all visitors utilizing our Services under the age of 13 not to disclose or provide any User Information on our Services. In the event that we discover that a child under the age of 13 has provided User Information to us, in accordance with the Children's Online Privacy Protection Act (see the Federal Trade Commission's web site for more information about this Act), we will delete the child's User Information from our files to the extent technologically possible.

2. How we use and share User Information.

When you actively submit User Information through the Services, we will use that information in one or more of the following ways:

- To process, complete or otherwise act upon or respond to your request or reason for submitting that information;
- To register and/or verify you in connection with a service or feature that you are attempting to access or obtain;
- To communicate with you about your request or reason for submitting that information;
- To provide additional information to you about Banner Health and its services that we believe may interest you;
- To study and analyze the use of the information and features available on our Services; and
- To assist, when necessary, in protecting our rights or property, enforcing the provisions of our Privacy Statement and Terms of Use, and/or preventing harm to you or others.

We do not sell User Information to third parties. And except where we otherwise obtain your express permission, we share your User Information with third parties only under the limited circumstances stated below:

- Credit card authorization companies receive the credit card number and other personal identifying information only to verify the credit card numbers and process a transaction.
- User Information is disclosed to third parties necessary to process a particular request you have made, to complete a purchase order for merchandise and to deliver your purchase to you or to process a donation.
- User Information submitted regarding a job application may be disclosed to third parties to conduct background checks, obtain credit reports, verify prior employment, check references and for any other lawful purpose that is in our judgment reasonably necessary to our interviewing and hiring process.
- User Information is subject to disclosure in response to judicial or other governmental subpoenas, warrants and court orders served on Banner Health in accordance with their terms, or as otherwise required by applicable law.
- User Information is subject to disclosure to protect our rights or property, to enforce the provisions of our Privacy Statement and Terms of Use, and/or to prevent harm to you or others.
- User Information may be disclosed and transferred if Banner Health or its business is sold or offered for sale to another company or person(s), if a petition for relief under the United States Bankruptcy Laws is filed by or against Banner Health, or if Banner Health becomes subject to an order of appointment of a trustee or receiver.
- If you communicate with us via e-mail, we will share your correspondence, including any User Information provided in the e-mail, with employees, volunteers, representatives, or agents most capable of addressing your correspondence. We will retain your communication until we have done our very best to provide you with a complete and satisfactory response and may subsequently retain your communication for our records.

Except where we are compelled by law to disclose your User Information, you have a right to choose whether we disclose your User Information to a third party or use your User Information for a purpose incompatible with the purpose(s) for which it was originally provided or subsequently authorized by you. Except where we are compelled by law to maintain your User Information, you also have a right to choose whether we keep your User Information. Please notify us using the contact information provided below if you wish to opt out of any such use. Please be aware that opting out of certain third-party use may prevent us from providing the services or products that you request.

All comments, feedback, suggestions, ideas, and other submissions disclosed, submitted, or offered to Banner Health regarding your use of our Services (collectively "Comments") shall be and remain the property of Banner Health. Unless otherwise prohibited by law, you agree that Banner Health may use or disclose Comments in any manner, without restriction and without compensation to you.

3. Linking to third-party websites.

When you click on links in our Services that take you to third-party websites, you will be subject to the third parties' privacy policies. While we support the protection of privacy on the Internet, *Banner Health cannot be responsible for the actions of any third-party websites.* We encourage you to read the posted privacy statement of any and every site you visit, whether you are linking from our Services or browsing on your own.

4. Access to and managing your User Information.

We believe it is important for you to be able to find out what User Information you have provided to us through our Services. If you have provided us with User Information, you can contact us to request that we provide you with the User Information we have in our records about you. We reserve the right to limit the number of times such a request can be made and to charge you for responding to such requests if this process is misused or abused. You may contact us using the contact information provided below to inquire about your User Information, and to correct, amend, or delete such information. We want the User Information we have on record about you to be as complete and accurate as possible.

If you believe that any User Information we have in our records about you is inaccurate, incomplete, or incompatible with the purposes for which it was provided or subsequently authorized by you, please notify us using the contact information provided below.

5. What you need to do to protect your Personally Identifiable Information.

You have several options when deciding how you can best protect your User Information. One option is simply not to volunteer it. As stated above, this approach would allow you to still use our Services – although it will prevent you from taking advantage of some of our Services' features, for example, completing an order, making an appointment and signing up for classes. The Federal Trade Commission's website, www.ftc.gov, also offers useful information about how to protect User Information provided to a website.

6. What to do about suspected violations of this Privacy Statement.

If at any time you believe Banner Health has not adhered to the policies and principles set forth in this Privacy Statement, please notify us using the contact information provided below. We will make all commercially reasonable efforts to promptly address your concerns.

7. Changes to Privacy Statement.

This Privacy Statement was last modified on the date noted above. If we change our Privacy Statement, we will post those changes on our website so you are always aware of what information we collect, how we use it, how we protect it and under what circumstances, if any, we disclose it. If we make material changes, we will also post a notice on our home page, which notice will run for seven consecutive days following the effective date of the modified privacy statement. Unless we clearly express otherwise, we will use information in accordance with the Privacy Statement under which the information was collected. YOU ARE HEREBY ADVISED THAT YOUR CONTINUED USE OF OUR SERVICES CONSTITUTES YOUR ACCEPTANCE OF ANY AMENDMENTS TO AND THE MOST RECENT VERSION OF THIS PRIVACY STATEMENT.

8. Questions, comments and contact information.

If you have any questions or comments concerning our Privacy Statement, please contact us through our online form.

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